Received on : 12.04.2019.
Registered on : 12.04.2019.
Decided on : 19.10.2022.
Duration : Y M D
03-06-07.

IN THE COURT OF THE ADDL. CHIEF METROPOLITAN MAGISTRATE,
2nd COURT, MAZGAON AT SEWREE,MUMBAI.
(Presided over by M. A. Kothari)

Exhibit-13

a]	The serial number of the case.	554/PW/2019. (CNR No. MHMM120103202019).
b]	The date of the commission of the offence.	13.03.2019
c]	The name of informant (if any)	The State [at the instance of Pydhonie Police Station].
d]	The name of the accused person, and his parentage and residence.	1. Mansur Alam Mohd. Changa Ansari, aged 34 years, residing at Pydhonie, Mumbai.
e]	The offence complained of or proved.	Offence punishable Under sections 75, 79 of Juvenile Justice (Care and Protection) Act, 2015
f]	The plea of the accused and his examination (if any)	Accused pleaded not guilty and claimed to be tried.
g]	The final order.	Accused is Acquitted.
h]	The date of such order.	19/10/22.

Ld. A.P.P. for the State Absent
Ld. Adv. Sufiya Ansari for accused.

JUDGMENT
(Delivered on 19th October, 2022)

1. The accused is facing trial for the offence under section u/s 75, 79 of Juvenile Justice (Care and Protection) Act, 2015

2. **The prosecution case in brief is as under** :-

That on 13.03.2019 at 16.15 hrs at Taufik Restaurant 167/169, Zakeria Masjid Street Pydhonie, Mumbai, when the police had visited Taufik Restaurant and had caught two boys namely Alam Shamim Khang aged 14 years and Nabi Hussain Mohd. Ajij Ansari, aged 16 years working in the said establishment. Considering the age of the boys being a minor and was asked to do hardship work, police had arrested the accused and offence was registered. Lateron, investigating officer had visited the spot, prepared spot panchanama, recorded statement of witnesses and filed chargesheet against the accused.

3. My learned predecessor framed the charge against accused. The particulars of the charge were read over and explained to the accused to which accused pleaded not guilty and claimed to be tried. The statement of accused u/sec. 313 of Cr. P. C. is recorded. His defence is that of total denial and false implication.

4. Considering the material placed before me the following points arise for my determination and findings thereon are as under :-

	POINTS	FINDING
1	Whether prosecution proves that on 13.03.2019 at 16.15 hrs at Taufik Restaurant 167/169, Zakeria Masjid Street Pydhonie, Mumbai accused compelled the child namely Alam Shamim Khang aged 14 years and Nabi	.. In the negative.

Hussain Mohd. Ajij Ansari, aged 16 years to work in his establishment without their will and taken out physical work from them and thereby committed an offence punishable u/sec. 75, 79 of Juvenile Justice (Care and Protection) Act, 2015?

1 What order? .. As per final order

REASONS

As to point No. 01 :

5. Heard Ld. APP and counsel for the accused. Perused the record. During the course of trial, prosecution has examined P. W. 1 Rita Fernandis as NGO from Pratham Mumbai Shikshan Upkram at Exh-8 and Vidhya as another NGO working with the said NGO at Exh-10. Except, both these NGOs, no other witnesses are examined by the prosecution. The panchanama was prepared by the Investigating officer but for want of examination of Investigating officer and both the pancha, the contents of the panchanama are not proved.

6. In the evidence of P. W. 1 Rita, FIR Exh-9 was proved. The letter by which the informant had given letter to the police station is not proved. In the evidence of both the witnesses, the age of boy is not proved and therefore, there is no evidence on record to show at the relevant time the boys who were asked to work in the establishment were juvenile and were forced to do hazardous work which is endangering to their life and safety. There is no evidence on record to show that the accused was owner of the said establishment and who has engaged the said juvenile in his establishment. Therefore, for want of evidence regarding the age of the boy and the accused being the owner

of the said establishment, the accused is entitled for benefit of doubt and is liable to be acquitted. Therefore, I have recorded my findings to the aforesaid point in the negative and pass the following order :-

ORDER.

i Accused Mansur Alam Mohd. Changa Ansari is hereby acquitted for the offences punishable u/s 75, 79 of Juvenile Justice (Care and Protection) Act, 2015 u/sec. 248 (1) of the Code of Criminal Procedure

ii The bail bonds of accused stands cancelled.

iii The accused shall furnish personal bond of Rs. 5,000/- in view of section 437-A of Criminal Procedure Code.

iv The Judgment is dictated and pronounced in open Court.

Manish Arun Kothari Digitally signed by Manish Arun Kothari Date: 2022.11.01 16:11:00 +05'30'

(M. A. Kothari)
Addl. Chief Metropolitan Magistrate,
Date : 19.10.2022. 2nd Court, Mazgaon, at Sewree, Mumbai.

Judgment Dictated on : 19.10.2022.
Judgment Typed on : 20.10.2022.
Judgment signed on : 20.10.2022.

krh/-